

26AVUD00514 26AVUD00514

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 26AVUD00514 Hearing Date: August 11, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

NURY RODRIGUEZ,

Plaintiff,

v.

JOCELYN CEBREROS; CRISTIAN MARENCO; DOES through 10,

Defendants.

Case Number 26AVUD00514

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 11, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an unlawful detainer case. Defendants Jocelyn Cebreros (Cebreros) and Cristian Marengo (Marengo) move the Court to quash service of summons.

On April 30, 2026, Plaintiff Nury Rodriguez (Rodriguez) filed a complaint against Defendants for unlawful detainer, alleging that Defendants are in possession of the premises owned by Plaintiff and located at 43489 30th Street West, Unit 2, Lancaster, CA 93536 (the Property).

On May 20, 2026, Defendants filed a motion to quash service of summons.

On May 27, 2026, Plaintiff filed two proofs of personal service of summons as to Defendants and proof of service of summons by substituted service on all unnamed occupants of the Property.

On May 27, 2026, default was entered against both Defendants.

On June 11, 2026, Defendants filed notice that the motion to quash was taken off calendar.

That same date, Defendants refiled a motion to quash service of summons.

On June 24, 2026, Plaintiff filed her opposition.

On June 30, 2026, Plaintiff filed two additional proofs of personal service of summons as to each Defendant.

On July 1, 2026, Defendants filed their reply.

On July 7, 2026, Honorable Commissioner Michelle Lim called the motion for hearing, at which Defendants did not appear, and denied the motion to quash.

On July 10, 2026, Defendants filed a notice of filing and automatic prevention of default, stating that Defendants had filed a petition for writ of mandate in the appellate department on the grounds that the trial court's July 7, 2026 ruling on the motion to quash was heard by a commissioner when Defendants did not stipulate to a commissioner and expressly included a non-stipulation in their motion.

On July 24, 2026, on receipt of the writ, the Court issued a Minute Order delineating its inclination to vacate the July 7, 2026 order denying the motion to quash and transferring the matter to a superior court judge for consideration.

On July 29, 2026, the Court vacated the July 7, 2026 Order and transferred the action to Department A-14.

II. Legal Standard

Standard for Motion to Quash Service – A defendant who contends service of summons is defective may, on or before the last day of his or her time to plead or within any further time that the court may allow for good cause, may move to quash service of summons on the ground of lack of personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).)

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, 'the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413 (internal citations omitted).) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 795.)

"On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.' [Citation.]" (Brown v. Garcia (2017) 17 Cal.App.5th 1198, 1203; see also Sheard v. Superior Court (1974) 40 Cal.App.3d 207, 211 ["[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service."].)

Some California courts have held that "[a] motion to quash service is the only method by which the defendant can test whether the complaint states a cause of action for unlawful detainer." (Delta Imps. v. Municipal Court (1983) 146 Cal.App.3d 1033, 1036.) However, others have disagreed, holding that a "tenant may not challenge the allegedly defective service of the three-day notice via a motion to quash service of summons because the three-day notice is an element of an unlawful detainer action." (Borsuk v. Appellate Division of Superior Court (2015) 242 Cal.App.4th 607, 610.)

III. Discussion

Application – Defendants move for an order quashing the service of summons pursuant to Code of Civil Procedure sections 418.10 and 1167.4 on the grounds that service was not properly effectuated. (Motion, p. 1:18-20, 2:3-6.)

Defendants argue that Plaintiff's complaint fails to state a cause of action for unlawful detainer, as Civil Code section 1942.6(b)(2)(A)(1) lists family or owner move-in as a just cause reason, but only applies for leases entered into on or after July 1, 2020, or July 1, 2022 if the lease is for a tenancy in a mobile home, if the tenant agrees in writing to the termination, or if a provision of the lease allows the owner to terminate the lease if the owner, their spouse, domestic partner, children, grandchildren, parents, or grandparents, unilaterally decides to occupy the residential real property. (Motion, p. 3:7-12.) Defendant Marengo declares there is no written agreement between Defendants and Plaintiff allowing for owner or family move-in. (Marengo Decl., p. 1:6.) Defendants also argue that the five day summons is only permitted for unlawful detainer actions pursuant to Delta, that Borsuk is bad law as it conflicts with Delta, and Plaintiff's service of summons must be quashed and her action dismissed. (Motion, p. 2:12-26, 3:14-15.)

In opposition, Plaintiff argues she met all statutory requirements to execute service on Defendants, pursuant to Code of Civil Procedure section 414.10, and that a non-party adult, Rose Pliego, personally handed the summons and complaint to the Defendants. (Opp., p. 2:5-9.) Plaintiff also argues the Court already obtained personal jurisdiction over the Defendants when it entered default against Defendants. (Opp., p. 2:12-18.) Plaintiff further asserts that Civil Code section 1946.2, subdivision (b)(2)(A) does not apply, as the Property is not a mobile home, and that Defendants lack standing to file motions due to their default in this case. (Opp., p. 3:9-22.)

On reply, Defendants argue that Plaintiff improperly invoked the expedited five-day unlawful detainer procedures when the complaint fails to state a legal sufficient cause of action for unlawful detainer. (Reply, p. 1:25-27.) Defendants also argue that entry of default does not create personal jurisdiction, and Plaintiff misinterprets Civil Code section 1946.2. (Reply, p. 2:20-26, 3:4-13.)

California Code of Civil Procedure section 1166, subdivision (a) sets forth the pleading requirements of an unlawful detainer complaint. Section 1166(a) states, in relevant part: "The complaint shall: (1) be verified and include the typed or printed name of the person verifying the complaint. (2) Set forth the facts on which the plaintiff seeks to recover. (3) Describe the premises with reasonable certainty... (5) State specifically the method used to serve the defendant with the notice or notices of termination upon which the complaint is based. This requirement may be satisfied by using and completing all items relating to service of the notice or noticed in an appropriate Judicial Council form complaint, or by attaching a proof of service of the notice...of termination served on the defendant."

Here, the Court finds that Plaintiff's complaint states facts sufficient to constitute a cause of action for unlawful detainer. Plaintiff's complaint (1) is verified and includes the printed name of Plaintiff who is verifying the complaint, (2) sets forth the facts on which Plaintiff seeks to recover, being that Defendants are in possession of her Property, received notice to vacate the premises for non-fault just cause, and that Plaintiff intended to move in and occupy the Property for a period of at least 12 months, (3) describes the Property with reasonable certainty, and (4) states with certainty the method used to serve Defendants with notice of termination upon which the complaint is based and attached a copy of said notice and proof of service. Plaintiff also complied with the notice requirements of Civil Code section 1946.2. No more is needed at the pleading stage.

While Defendants are correct that Civil Code section 1946.2, subdivision (b)(2)(i) only applies to leases entered on or after July 1, 2020, if Defendants agreed with Plaintiff that the lease may be terminated if Plaintiff intends to occupy the Property or if the lease agreement provides termination on these grounds, Plaintiff is under no obligation to provide evidence to that effect in the complaint. Defendants may appropriately contest the validity of the just cause at a hearing on the matter before judgment is entered in this case. Finally, the Court notes that Plaintiff is mistaken that entry of default establishes personal jurisdiction or terminates Defendants' rights to file any substantive motion with the Court. However, on review of the proofs of personal service of summons and the moving, opposition, and reply papers filed on this motion, the Court finds personal service was proper and that the Court has established personal jurisdiction over the Defendants through the valid service of process.

Therefore, Defendants' motion to quash service of summons is DENIED. This denial is without prejudice to Defendants' arguments as to the validity of just cause raised in the moving and reply papers. Should Defendants wish to appear in this action and file a responsive document, they may move the Court to set aside the entry of default.

IV. Conclusion

Defendants Jocelyn Cebreros and Cristian Marengo's Motion to Quash Service of Summons is DENIED.